

Country Profile: Myanmar (Burma)

Nation-Building Policies Dataset

- Number of groups in country: 14
- Plurality religion: Theravada Buddhism
- Official language: Burmese
- Official religion: Buddhism
- Core group: Burman

Historical Background

Myanmar (Burma) gained independence from Britain in 1948. Post-independence Burma experienced an upsurge of civil war in the 1950s and eventually the consolidation of a one-party dictatorship. With a new constitution adopted in 2008 and general election held in 2010 and 2015, the country entered into a phase of partial democratization, which was ended by a military coup in 2021. Post-independence Myanmar increasingly defined belonging to the national community in terms of membership to one of eight ethnic groups recognized as “national races” (*taingyintha*), a classification system that builds on British colonial categorizations.¹ No major official border changes have taken place since independence, though Myanmar’s long border with Thailand remains contested.

Groups

- **Burmans** are the core group in Myanmar, making up around 69% of the population.² They speak Burmese, which is the country’s official national language.³ The majority of Burmans practice Theravada Buddhism.⁴ The group dominates state institutions, politics, and powerful organizations such as the armed forces (*Tatmadaw*).

¹ Cheesman, 2017.

² Jap and Courtin, 2022, 18.

³ Ethnologue, 2024.

⁴ Joshua project, 2024.

- **Kachin** people, an Indigenous racialized group in Myanmar, constitute approximately 1.5% of the population.⁵ They were signatories to the 1947 Panglong Agreement, which provided the basis for the establishment of Myanmar's Kachin State, their primary region of habitation, addressing their demands for self-determination, which the group continues to uphold today.⁶ The Kachin widely speak the Jingpho language, which is not shared with the rest of the population.⁷ Historically practitioners of animism, the Kachin began converting to Christianity in 1877 through efforts by European and American missionaries, making Christianity the predominant religion among them today.⁸
- **Karenni**, also known as Red Karen or Kayah, is a collective term introduced during the colonial era to describe Indigenous racialized groups in Myanmar that speak Tibeto-Burman languages, including Western Kayah, Eastern Kayah, and Kayan, but also S'gaw Karen.⁹ Representing about 0.5% of the population, they are primarily concentrated in eastern Myanmar along the border with Thailand.¹⁰ The Karenni have a long history of self-determination movements, rooted in their semi-independent status during British rule.¹¹ Religiously diverse, their practices vary among subgroups; historically, they followed animism, with significant conversions to Christianity and Theravada Buddhism during the 19th and 20th centuries.¹²
- **Karen** are a multilingual Indigenous racialized group of Tibetan-Central Asian origin, comprising 6.6% of Myanmar's population.¹³ Primarily residing in the eastern border regions, particularly in Karen State, the group is linguistically diverse.¹⁴ About 85% speak S'gaw Karen, while Pwo Eastern Karen and Pwo Western Karen are also widely spoken.¹⁵ Their religious practices are equally varied, with a slight majority identifying as Christians, alongside significant

⁵ Jap and Courtin, 2022, 18; IWGIA, 2024.

⁶ Sambanis et al., 2018; Minority rights, 2017b.

⁷ Ethnologue, 2024.

⁸ Zung Ting, 2018.

⁹ Minority Rights Group, 2017d; Ethnologue, 2024.

¹⁰ EPR-ED, 2021; Grundy-Warr and Yin, 2002, 99; IWGIA, 2024.

¹¹ Sambanis, et al. 2018; Minority Rights Group, 2017d.

¹² EPR-ED, 2021; CU Involved, 2019; UNHCR South-East Myanmar Information Management Unit, 2014, 2.

¹³ Jap and Courtin, 2022, 18; Minority Rights Group, 2017c.

¹⁴ Sambanis et al., 2018.

¹⁵ Ethnologue, 2024; Minority Rights Group, 2017c.

numbers of animists and Theravada Buddhists.¹⁶ Despite these differences, a shared culture and common traditions serve as unifying markers of Karen identity.¹⁷ Karen continue to demand self-determination.

- **Mon** have resided in the area of present-day Myanmar possibly since the first millennium BCE and currently make up about 2% of the population.¹⁸ This Indigenous racialized group is primarily concentrated in Mon State, where aspirations for self-determination, including historical military resistance, remain active today.¹⁹ The Mon traditionally speak the Mon language but today they also speak Burmese and largely follow Theravada Buddhism.²⁰
- **Shan** are an Indigenous racialized group in Myanmar, whose share of the population declined from 8.3% in the 1940s to 4% by the 2010s.²¹ They primarily inhabit Shan State, established by the 1947 Constitution, and have been involved in military conflicts advocating for greater autonomy.²² Shan is their language, and the majority of the Shan practice Theravada Buddhism.²³
- **Zomi**, also known as Chin, are an indigenous racial group comprising around 2% of Myanmar's population.²⁴ Historically concentrated in Chin State, established by the 1947 Constitution, they are now also present in Arakan/Rakhine State.²⁵ The Chin are linguistically diverse, with different segments speaking Tedim Chin, Mro-Khimi, and Falam Chin, although Burmese is also spoken by most members of the group today.²⁶ While originally practicing animism, they were converted to Christianity by Western missionaries in the 19th century, making Christianity the plurality religion among them today.²⁷ Although they initially refrained from post-independence ethnic rebellions, the Chin began active self-determination

¹⁶ EPR-ED, 2021; The Karen Organization of Minnesota, n.d.; Karenni Social Development Center, 2015.

¹⁷ Karen Buddhist Dhamma Dhutta Foundation, 2010.

¹⁸ Jap and Courtin, 2022, 18; Minority Rights Group, 2017e.

¹⁹ IWGIA, 2024; AMAR, 2018; Sambanis et al., 2018; Tea Circle Oxford, 2022.

²⁰ EPR-ED, 2021; Ethnologue, 2024.

²¹ Jap and Courtin, 2022, 18; IWGIA, 2024; Conway, 2020.

²² Sambanis et al., 2018

²³ Ethnologue, 2024; EPR-ED, 2021.

²⁴ Jap and Courtin, 2022; IWGIA, 2024; McAuliffe, 2017.

²⁵ Minority Rights Group. 2017a; AMAR, 2018.

²⁶ Ethnologue, 2024; Minority Rights Group, 2017a.

²⁷ EthnoMed, 2010; Lian, 2021.

resistance in 1988, following the military crackdown on Myanmar's democratic movement.²⁸

- **Buddhist Arakanese** (Rakhine) are an Indigenous racialized group in Myanmar, comprising around 4% of the population.²⁹ Primarily residing in Rakhine State, they speak the Rakhine language and follow Theravada Buddhism.³⁰ Their self-determination movement, including military conflicts with central state forces, was active from independence until 1981.³¹
- **Chinese**, an ethnic Han group who migrated to modern-day Myanmar during the British colonial period, make up about 3% of the population.³² This racialized group shares Mandarin Chinese as their ancestral language but also now widely speaks Burmese and primarily practices Mahayana Buddhism, with some also following Shism.³³
- **Indians** in Myanmar, descendants of migrant workers who arrived during the colonial period, comprise about 4.5% of the population.³⁴ They speak various languages, including Bengali, Tamil, and Telugu.³⁵ While the majority are Hindus, there is also a significant Muslim community among them.³⁶
- **Palaung**, an Austroasiatic upland Indigenous racialized group, primarily live in Shan State and account for less than 1% of Myanmar's population.³⁷ They traditionally speak Ruching Palaung, Shwe Palaung, and Rumai Palaung, which have become endangered since Shan, and then Burmese, became the dominant language among them.³⁸ Most Palaung people follow Theravada Buddhism and have been engaged in an active self-determination movement since the Ta'ang Revolution in 1963.³⁹

²⁸ Minority Rights Group, 2017a; Sambanis et al., 2018.

²⁹ IWGIA, 2024; Boutry, 2012; Burma Census Commission, 1983; Seekins, 2020.

³⁰ Joshua project, 2024; EPR-ED, 2021; Ethnologue, 2024.

³¹ Sambanis et al., 2018

³² Chiu, 2022, 2; Wu, 2021.

³³ Chiu, 2022; Ethnologue, 2024.

³⁴ Chaturvedi, n.d.

³⁵ Ethnologue, 2024.

³⁶ Egreteau, 2011.

³⁷ WFDD, 2019; Waddington, 2003.

³⁸ Kojima, 2016.

³⁹ PeaceRep, 2024; Sambanis et al., 2018.

- **Wa** are an Indigenous racialized group, comprising less than 0.5% of Myanmar's population.⁴⁰ They primarily reside in the Wa Self-Administered Division of Shan State.⁴¹ Their aspiration for self-determination, active since 1972, has, since 1989, been closely associated with the leadership of the United Wa State Army (UWSA).⁴² The Wa speak Parauk Wa and are also fluent in Mandarin Chinese due to their proximity to the Chinese border and their historical interactions with the Chinese.⁴³ Western missionary efforts to convert the Wa to Christianity in the early 20th century were less successful than those with the Kachin; consequently, the majority of the Wa continue to practice animism.⁴⁴
- **Rohingya**, also known as Arakanese, are a racialized group primarily concentrated in Rakhine (Arakan) State, comprising around 1% of Myanmar's population.⁴⁵ Although not officially recognized as Indigenous by the Myanmar government, which locates the group's origin in Bangladesh, some international organizations consider them as such.⁴⁶ The Rohingya actively demand autonomy within Myanmar, claiming to belong to the *taingyintha* and seeking equal treatment and recognition of their cultural and religious rights.⁴⁷ The name Rohingya is associated with their Muslim faith.⁴⁸ Their language, Rohingya, is derived from Bengali and is similar to the Chittagonian dialect spoken in nearby Chittagong, Bangladesh.⁴⁹
- **Minorities in Shan State** comprise several Indigenous racialized groups, primarily the **Akha**, **Lahu**, and **Lisu**, collectively accounting for less than 0.5% of Myanmar's population.⁵⁰ They speak the Akha, Lahu, and Lisu languages, respectively.⁵¹ Their religious affiliations are diverse, with the Lahu and Lisu predominantly practicing Christianity, while the Akha maintain their animist beliefs.⁵² Since 1958, the Lahu

⁴⁰ Fiskesjö, 2013; Dillabough-Lefebvre, 2019; Ethnologue, 2024.

⁴¹ WFP, 2019.

⁴² Sambanis et al., 2018.

⁴³ Steinmueller, 2021.

⁴⁴ EPR-ED, 2021; Gray, 2022.

⁴⁵ Tea Circle Oxford, 2022; Burma Census Commission, 1983; Washaly, 2019.

⁴⁶ IWGIA, 2024; Busyairi and Siem, 2021, 122.

⁴⁷ Sambanis et al., 2018.

⁴⁸ Minority Rights Group. 2019.

⁴⁹ Ethnologue, 2024; Minority Rights Group, 2019.

⁵⁰ Mamo, 2020; Callahan, 2017; Pon Yate, 2023.

⁵¹ Ethnologue, 2024.

⁵² Kammerer, 1990, 283; Walker, 2008, 219; Lwin, 2019.

have sustained an active self-determination movement through the Lahu Democratic Union.⁵³

State Profile

Official Language

Burmese has been the official language of Myanmar since the state's independence. Most recently, this was specified in Chapter XV, Article 450 of the 2008 Constitution.⁵⁴ Additionally, the 1947 Constitution also permitted the use of English in official settings under Chapter XIII, Article 216.⁵⁵

Official Religion

The 1947 Constitution acknowledged the “special position of Buddhism as the faith professed by the great majority of the citizens of the Union.”⁵⁶ In 1961, amendments introduced Article 21a, further solidifying Buddhism's status by declaring it “the State religion of the Union.”⁵⁷ These provisions were omitted from the 1962 and 1974 Constitutions but were reinstated in the 2008 Constitution in the original wording of 1947 Constitution.⁵⁸

Education Policies

Myanmar's education system begins with five years of compulsory primary education following an optional pre-school. Secondary education starts with middle school, covering grades 6 to 8 and culminating in standard examinations. The second stage of secondary school begins at grade 9, when students choose between arts and science streams, and finishes at grade 11.

Although no formal laws mandate separation, *de facto* practices have entrenched educational disparities for **Rohingya** in Rakhine State since 2012. They have faced **educational segregation** following state-organized violence, resulting in Rohingya children being placed in separate schools.⁵⁹

⁵³ Sambanis et al., 2018.

⁵⁴ Constitution of Myanmar, 2008.

⁵⁵ Constitution of the Union of Burma, 1947.

⁵⁶ Constitution of the Union of Burma, 1947.

⁵⁷ Constitution of the Union of Burma, 1947.

⁵⁸ Constitution of Myanmar, 2008.

⁵⁹ Burma Campaign, 2018; Carroll, 2014.

Until the military coup in 1962, **private education** was permitted under the 1951 Private Schools Act. However, following the 1962 coup, private schools were banned.⁶⁰ The Private School Bill of September 7, 2011, adopted in the course of Myanmar's partial democratization, permitted the establishment of private secondary schools, though not private primary schools, as well as their teaching of ethnic languages.⁶¹

Language Education Policies

Since Myanmar gained independence in 1948, its language education policies have undergone significant transformations influenced by political regimes and nationalization efforts. From 1948 to 1962, the Constitution permitted the use of local ethnic languages alongside Burmese in primary education, promoting multilingualism and the development of ethnic language textbooks during the 1950s.⁶² English held co-official status and was taught as a second language in primary and secondary schools until the military coup in 1962. During this period, Indigenous languages of recognized ethnic groups such as Jingpho, Kayah, Karen, Mon, Chin, and Shan were allowed as language classes in their respective regions.

Following the 1962 military coup, General Ne Win's regime implemented a policy of "Burmanization," centralizing education and enforcing Burmese as the sole medium of instruction in government schools from 1963 onward.⁶³ This policy effectively marginalized ethnic languages, suppressing their use in formal education and exacerbating ethnic tensions. By 1966, all schools were nationalized, and existing ethnic education programs were suppressed.⁶⁴ Ethnic armed groups and local communities established unofficial schools, allowing the use of native languages like Karen, Mon, Chin, Jingpho, Mro-Khimi, and Shan as language classes within their regions. These parallel education systems operated outside the official framework, making the preservation and teaching of these languages dependent on decentralized, community-driven efforts rather than formal legislative acts.⁶⁵

In 2014, significant reforms were introduced with the National Education Law, allowing ethnic languages to be taught as subjects and permitting their use as mediums of

⁶⁰ McCormick, 2019.

⁶¹ Chun-Ying, 2011; Lall, 2020.

⁶² McCormick, 2019.

⁶³ Surakiat, 2015.

⁶⁴ Salem-Gervais and Raynaud, 2020.

⁶⁵ Balakrishnan, 2020; Matelski, 2015.

instruction in primary schools within their respective ethnic regions.⁶⁶ Non-indigenous languages were also formally permitted to be taught in schools, leading to the inclusion of Rakhine, Lisu, Lahu, Akha, Palaung, and Wa in the educational system.⁶⁷

Religious Education Policies

In Myanmar's **public schools**, religious education has not been officially included in the curriculum. Despite the absence of formal religious instruction, Buddhist practices have been informally integrated into the school environment. The national curriculum emphasizes a singular national identity, dominated by Bamar cultural and military history, often associating national identity with Buddhism. References to other religions have been omitted from textbooks.⁶⁸

Prior to 1962, **private schools** in Myanmar, including Christian schools and Buddhist monastic schools, were accepted under the Private Schools Act of 1951 and were permitted to include religious education in their curricula. The 2011 Private School Registration Law explicitly prohibits the teaching of religious lessons.⁶⁹

Bans and Restrictions

Minority languages

The government has repeatedly imposed restrictions and bans on the use of minority languages in naming and media. From 1989 to 2020, the "Adaptation of Expression Law" restricted the naming of local administrative units exclusively to Burmese, exemplified by renaming "Arakan" to "Rakhine" and "Karen" to "Kayin."⁷⁰ Between 1963 and approximately 2013, the use of minority languages in media was effectively banned nationwide. During this period, all newspapers were mandated to be published in Burmese or English, with no provision for minority language publications unless they were translated into Burmese, leading to the suppression of over 100 ethnic languages in print media.⁷¹ Although the Broadcasting Act of 2015 permitted the establishment of community radio stations for minority groups, the overall media landscape remained

⁶⁶ Jolliffe and Mears, 2016; Bradley, 2016.

⁶⁷ McCormick, 2019.

⁶⁸ U.S. Department of State, 2019; Shah and Cardozo, 2019.

⁶⁹ Shah and Cardozo, 2019.

⁷⁰ Leclerc, 2024.

⁷¹ Leclerc, 2024; UNPO, 2011.

dominated by Burmese and English, maintaining significant restrictions on the use of ethnic languages in media.⁷²

Specifically, Chinese-language newspapers were banned from 1966 to 1997 and again from 2004 to 2006.⁷³ Additionally, use of Chinese in television and broadcasting programs was not allowed until after 2010.⁷⁴

Rohingya faced complete bans on their language in media since their disenfranchisement in 1982.⁷⁵

Religious restrictions

Myanmar has repeatedly imposed extensive restrictions and bans on non-Buddhist religious practices throughout the country to promote Theravāda Buddhism as the state religion. From 1963 onward, the regime nationalized all private and religious schools, expelled foreign missionaries, prohibited the construction of new churches and mosques, and persecuted Christians in Chin State particularly, restricting the distribution of religious literature and forcing them to convert to Buddhism to access better-funded schools.

Muslims have been similarly targeted, with mosques being shut down following anti-Muslim riots in 2013 and public prayer services being banned. Hindus encountered limitations in accessing religious sites starting in 2014. The enactment of the Race and Religion Protection Laws in 2015 further entrenched these restrictions.⁷⁶

Demographic Engineering and Violence

State-Based Violence

Karen: During Myanmar's civil war from 1962 to 1992, the military regime perpetrated extensive state-based violence against ethnic minorities, particularly targeting the Karen population. The conflict involved targeted mass killings and the forced relocation of civilians in the implementation of the "Four Cuts strategy", starting in 1968, which led to

⁷² Leclerc, 2024.

⁷³ Ciu, 2010.

⁷⁴ Tu, 2018.

⁷⁵ UNPO, 2011.

⁷⁶ U.S. Department of State, 2019; Cheesman, 2003; Crouch, 2015.

the destruction of over 2,536 villages and the displacement of approximately 632,978 people, as documented by the Targeted Mass Killings (TMK) and UCDP datasets.⁷⁷

Shan: The Targeted Mass Killings database highlights a period of roughly three decades (1962–1992) during which the Shan state was a primary target during the civil war, with a peak of over 1,100 deaths recorded in 1992. The government's oppressive tactics included direct attacks on civilians, mass forced relocations, and the destruction of villages to eliminate any potential support for the Shan State Army (SSA).⁷⁸

Buddhist Arkanese: Although the Rakhine Buddhists are officially recognized as an ethnic minority, they have also experienced marginalization and rising ethnic tensions, particularly following the forced expulsion of the Muslim Rohingya population during the Myanmar Civil war.⁷⁹

Palaung and Minorities in Shan: Between 1962 and 1992, the Myanmar military regime engaged in severe state-based violence against the Palaung and other minorities concentrated within Shan State.⁸⁰

Wa: The Myanmar military regime's "Four Cuts strategy" systematically targeted the Wa ethnic minority within Shan State as part of its broader attempts to suppress ethnic opposition and maintain centralized control between 1962 and 1992.⁸¹

Rohingya (Arakanese): From 1962 to 1992, and subsequently from 2012 to 2020, the Myanmar military regime systematically perpetrated state-based violence against the Rohingya Muslim minority, primarily in Rakhine State. This violence included targeted mass killings, as evidenced by crackdowns in the Arakan region in 1992 and 2012, and the escalation of violence in 2016 and 2017, which resulted in widespread atrocities including killings, sexual violence, and the destruction of Rohingya villages.⁸²

Forced Relocations

Shan: During Myanmar's prolonged civil conflict, the military regime employed systematic forced relocations targeting the Shan ethnic minority as part of its strategy to dismantle opposition groups. A significant escalation occurred in March 1996 when the

⁷⁷ Butcher et al., 2020

⁷⁸ Butcher et al., 2020; UCDP, 2023.

⁷⁹ UCDP, 2023.

⁸⁰ Butcher et al., 2020; UCDP, 2023.

⁸¹ Butcher et al., 2020; UCDP, 2023.

⁸² UCDP, 2023; Anderton and Brauer, 2016.

Burmese army began relocating over 300,000 Shan individuals from central Shan State, prohibiting their return to homes and farms. These forced relocations resulted in the destruction of more than 1,400 villages and the displacement of approximately 632,978 people.⁸³

Indians: Following the military coup in March 1962, Myanmar expelled approximately 200,000 Indians as part of its broader strategy to dismantle perceived economic and political threats.⁸⁴

Rohingya (Arakanese): Forcible relocations intensified in 1978, when military forces attacked Arakanese Muslims, leading to both internal displacement and the exodus of approximately 200,000 Rohingyas to Bangladesh.⁸⁵ Violence and displacement continued through the early 1990s, with significant atrocities in 1991 and 1992 resulting in the displacement of an additional 250,000 individuals.⁸⁶ The conflict in 2012 and brutal “clearance operations” after 2016 again displaced hundreds of thousands both internally and internationally.⁸⁷

Segregation

Rohingya (Arakanese): From 1982 to 2020, the Myanmar government enforced stringent segregation policies against the Rohingya Muslim minority in Rakhine State, systematically marginalizing them through legal and administrative measures. The 1982 Citizenship Law effectively stripped the Rohingya of citizenship. This legal framework imposed severe restrictions on their movement by requiring special travel permits.⁸⁸ Additionally, the government expropriated Rohingya-owned land for military and economic projects, relocating them to isolated camps or ghettos and demolishing their homes and villages to prevent their return.⁸⁹

Cultural Elimination

Shan: Between 2006 and 2009, the Myanmar government implemented a three-year resettlement and transmigration campaign aimed at forcibly assimilating the Shan ethnic minority by diluting their cultural and the demographic homogeneity in Shan State. This

⁸³ Amnesty International, 1999; Butcher et al., 2019; ReliefWeb, 2022.

⁸⁴ Brown, 2011.

⁸⁵ Egretreau, 2009.

⁸⁶ Egretreau, 2009.

⁸⁷ Amnesty International, 2017; U.S. Department of State, 2021.

⁸⁸ Amnesty International, 2017.

⁸⁹ Milton et al., 2017.

initiative involved the strategic importation of Burman and Wa settlers into Shan regions, part of the broader “Burmanization” policy that had been exerting pressure on non-Bamar ethnic groups since the military coup in 1962.⁹⁰

Rohingya (Arakanese): Restrictions on intangible cultural expressions were evident in May 2015 when Burmese authorities restricted marriages between Buddhist women and non-Buddhist men, requiring Rohingya to obtain state permission for marriage and limiting them to having only two children.⁹¹ Forced removal and transfer of children were starkly highlighted from January to June 2014, during which over 2,000 Rohingya children were coerced into working for Myanmar authorities in northern Rakhine State.⁹² Cultural heritage sites were razed during the 1978 Nagamin (Dragon King) census operation, in the course of which the government forces destroyed mosques, historic Islamic schools, and other Islamic monuments.⁹³

Zomi (Chin): The Burmese regime halted construction of new Christian churches in Chin state and prohibited Chin Christians from conducting religious services at existing churches in 2005.⁹⁴ U.S. Department of State country reports and International Religious Freedom reports note continuing delays, denials and *de facto* prohibitions on new church construction and frequent obstruction of church activities in Chin State across the 2010s.⁹⁵

Constitutions and Laws

Myanmar has operated under three constitutions and one constitutional law that served as a *de facto* constitution following the military coup. The first constitution was adopted in 1947 shortly before Burma’s independence. This constitution defined the territorial organization of the state, assigning specific regions to the recognized ethnic minority groups, such as the Shan in Shan State and the Karens in Karen State, and explicitly acknowledging the respective groups as the titular nations within each state.⁹⁶ Provision 20 of the 1947 Constitution guaranteed universal religious freedom,⁹⁷ and while

⁹⁰ Minority Rights Group, 2017g.

⁹¹ Fortify Rights, 2015.

⁹² Fortify Rights, 2015.

⁹³ Grundy-Warr and Wong, 1997.

⁹⁴ MAR, 2006.

⁹⁵ U.S. Department of State, 2019.

⁹⁶ Constitution of the Union of Burma, 1947.

⁹⁷ Constitution of the Union of Burma, 1947.

Buddhism was granted a special status, the constitution acknowledged Islam, Christianity, Hinduism, and animism as present within the Union.⁹⁸

Following the military coup in 1962, the 1947 Constitution was suspended. The country was governed by the transitional 1962 Constitution of the Socialist Republic of the Union of Burma, of limited scope, leading some scholars to consider that the state effectively operated without a formal constitution from 1962 to 1974.⁹⁹ The 1962 Act maintained provisions for universal religious freedom without specifically naming any religions.¹⁰⁰ In 1973, the Revolutionary Council, appointed by General Ne Win, drafted the official 1974 Constitution, which was adopted by referendum. This constitution aimed to institutionalize military rule by transforming the regime into a consolidated one-party dictatorship.¹⁰¹ Nevertheless, it retained general provisions regarding territorial organization, confirming the existence of titular nations within states: “The States and Divisions of the Socialist Republic of the Union of Burma are as follows: (a) Kachin State, (b) Kayah State, (c) Karen State, (d) Chin State, (e) Sagaing Division, (f) Tenasserim Division, (g) Pegu Division, (h) Magwe Division, (i) Mandalay Division, (j) Mon State, (k) Arakan State, (l) Rangoon Division, (m) Shan State, (n) Irrawaddy Division.”¹⁰² Adopting a socialist approach to religion, the 1974 Constitution did not reference any official religion or specific religious groups. It upheld universal religious liberty but mandated that “[r]eligion and religious organizations shall not be used for political purposes” (Article 156).¹⁰³

The 1974 Constitution was ultimately abandoned in 1988 by the State Law and Order Restoration Council (SLORC), which later became the State Peace and Development Council (SPDC). Due to significant political opposition and instability, a new constitution was not adopted until 2008 and came into force in 2011.¹⁰⁴ The 2008 Constitution reinstated some principles from the 1947 Constitution. Provision 49 delineates seven Regions, seven States, and the Union Territory of Naypyidaw, explicitly recognizing Kachin State, Kayah (Karenni) State, Kayin State, Chin State, Mon State, Rakhine (Arkanese) State, Yangon Region, Shan State, Wa Self-Administered Division, and Pa Laung Self-

⁹⁸ Constitution of the Union of Burma, 1947.

⁹⁹ ConstitutionNet, 2022.

¹⁰⁰ Constitution of the Socialist Republic of the Union of Burma, 1962.

¹⁰¹ ConstitutionNet, 2022.

¹⁰² Constitution of the Union of Burma, 1974.

¹⁰³ Constitution of the Union of Burma, 1974.

¹⁰⁴ ConstitutionNet, 2022.

Administered Zone.¹⁰⁵ Regarding religious provisions, Section 34 of the Constitution provides for universal religious freedom. In addition to the special status of Buddhism, Provision 362 recognizes Christianity, Islam, Hinduism, and animism as existing religions within the Union.¹⁰⁶

Citizenship Laws

Acquisition of nationality in Myanmar follows exclusively ethnic and *ius sanguinis*, descent-based criteria with barely any possibility for the naturalization of foreigners.¹⁰⁷ The Union Citizenship Act of 1948 and its 1982 successor strictly exclude the offspring of non-nationals from obtaining citizenship by birth in Myanmar. The 1948 Act allows citizenship for children born in the Union only if one parent is a citizen, with additional requirements if the father is a foreigner, including declarations of allegiance upon reaching adulthood. Similarly, the 1982 Act specifies that citizenship by birth is granted only to those with at least one citizen parent and offers no automatic citizenship to children of foreign parents, even under naturalization categories.¹⁰⁸

The Burma Citizenship Law of 1982 fundamentally redefined Myanmar's citizenship landscape by granting citizenship exclusively to individuals who could demonstrate family residency in the country prior to 1823 and, in conjunction with the constitutional framework, *de facto* making *taingyintha* membership a precondition for accessing full citizenship.¹⁰⁹

The Act established three categories of citizenship, bestowing full citizenship upon ethnic Burmans and recognizing minorities such as the Kachin, Kayah, Karen, Mon, Arakan Buddhists, and Shan, while explicitly omitting the Rohingya.

These provisions were perpetuated by the 2008 Constitution of the Republic of the Union of Myanmar, which maintained the 1982 Act's criteria by defining citizenship through parental nationality or existing legal status at the time of the Constitution's enactment.¹¹⁰

Inherently exclusionary, this legislation effectively rendered the Rohingya Muslims stateless despite their long-standing presence in Rakhine State.

¹⁰⁵ Constitution of Myanmar, 2008.

¹⁰⁶ Constitution of Myanmar, 2008.

¹⁰⁷ Arraiza and Vonk, 2017.

¹⁰⁸ Arraiza and Vonk, 2017 ; Cheesman, 2017.

¹⁰⁹ Burma Citizenship Law of 1982.

¹¹⁰ Arraiza and Vonk, 2017; Constitution of Myanmar, 2008.

National Anthem(s)

The Myanmar national anthem of 1947, titled “Kaba Ma Kyei” (“’Til the End of the World”), embodies the nation’s profound commitment to preserving its heritage and unity, referring to ancestors. The anthem passionately declares a readiness to fight and sacrifice lives for the nation, emphasizing the personal and collective duty to protect the country and its land. It reinforces the significance of the national territory, affirming Myanmar as its people’s own country and land, and calls for unwavering dedication to maintain the nation’s prosperity and integrity. Additionally, the anthem highlights the role of the military in upholding the nation’s values and ensuring its enduring stability.¹¹¹

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